

06.12.2021

Fine for GDPR Violation

The National Supervisory Authority completed in November 2021 an investigation into the operator Medical Civil Society Policlinica Tommed, following which it was found that there was a violation of the provisions of Article 5 paragraph (1) letters a), b), and f) and paragraph (2), in conjunction with Article 9 of the General Data Protection Regulation.

As such, the operator was sanctioned with a contravention fine in the amount of 9898 lei (equivalent to 2,000 euros).

The investigation was initiated following a complaint alleging that the Medical Civil Society Policlinica Tommed disclosed certain personal data, including health data, of an individual to another operator. During the investigation, it was found that the operator disclosed the respective personal data without respecting the principles of processing and without complying with the legal conditions for processing personal data, including health data, and without prior informing the involved person (a patient of the operator).

Additionally, the operator was also subjected to the corrective measure of ensuring compliance with GDPR for the operations of collecting and further processing personal data, in order to avoid the disclosure of processed personal data in violation of legal conditions, which includes the implementation of appropriate security and confidentiality measures, through regular training of individuals who process data under the authority of the operator and the appropriate involvement of the data protection officer, in accordance with Articles 37-39 of the GDPR.

Legal and Communication Directorate

A.N.S.P.D.C.P.